

Mr. Ward had a large sacral open wound and no control of his bowels, yet Defendants' staff left Mr. Ward sitting in his own feces for more than two or three hours before changing him. Mrs. Ward declared that she complained about the bed length, the restraints, and time it took to change Mr. Ward on numerous occasions. Plaintiffs' expert, Pam Sharkey, R.N. reviewed the First Amended Complaint, the medical records, and the declarations from Plaintiffs and Defendants' expert. Ms. Sharkey opined that Defendants neglected Mr. Ward by letting him sit in his own feces and failing to provide a proper bed. Ms. Sharkey further provides the regulations regarding physical restraint and opines that Defendants did not follow them by failing to obtain consent from Mr. Ward and failing to inform the Wards that they had the right to refuse. Plaintiffs have raised triable issues of material fact as to the First Cause of Action.

The Second Cause of Action alleged Loss of Consortium. "There are four elements to a cause of action for loss of consortium: '(1) a valid and lawful marriage between the plaintiff and the person injured at the time of the injury; (2) a tortious injury to the plaintiff's spouse; (3) loss of consortium suffered by the plaintiff; and (4) the loss was proximately caused by the defendant's act.' " *Vanhooser v. Superior Court* (2012) 206 Cal. App. 4th 921, 927, citing *Hahn v. Mirda* (2007) 147 Cal. App. 4th 740, 746, fn. 2. Both parties agree that this claim is derivative of the First Cause of Action. The same analysis applies.

The Motion for Summary Judgment is **DENIED**. Defendants are to provide an Order consistent with the Court's ruling.

WELLS FARGO BANK, N.A. VS. KAISER

Case Number: 24CVG-00725

Tentative Ruling on Motion to Deem Requests for Admissions Admitted: Plaintiff Wells Fargo Bank, N.A. seeks an order deeming the truth of matters specified in Plaintiff's Request for Admissions, Set One, which was served on Defendant Lindsay Kaiser by mail on January 28, 2025. The Motion is unopposed.

When a party fails to respond to a request for admission, the requesting party may move for an order deeming the genuineness of documents and the truth of matters specified in the requests admitted. CCP § 2033.280(b). Failure to respond also waives any objections to the discovery propounded. CCP § 2033.280(a). Unlike a motion to compel *further* responses, a motion to compel responses when no responses have been provided does not require the propounding party to demonstrate good cause or that it satisfied a meet-and-confer requirement. *Sinaiko Healthcare Consulting, Inc. v. Pacific Healthcare Consultants* (2007) 148 Cal. App. 4th 390. Here, Plaintiff's moving papers sufficiently demonstrate that the discovery was served by mail and Defendant has failed to respond within the required time frame. The request to deem the matters admitted is granted.

Monetary sanctions are mandatory per CCP 2033.280(c); however, Plaintiff did not seek monetary sanctions and provided no evidence regarding attorney's fees or other costs associated with bringing the motion. Sanctions should only be imposed for "reasonable" expenses. CCP § 2023.030. The Court does not have information upon which to make a finding that any amount of sanctions were for reasonable expenses and will not impose sanctions. The motion is **GRANTED**. A proposed order has been lodged and will be executed.